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SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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BRADLEY PULLMAN,

Plaintiff,

Index No.: 154004/17

-against-

VERIFIED COMPLAINT

CITY OF NEW YORK, POLICE OFFICER
TAMARAH PINCKENY, Shield Number 30612,
SERGEANT VINCENT FONTANA
Shield Number Unknown,
NYC DEPARTMENT OF CORRECTIONS OFFICER
“JANE MONTAGUE”, Shield Number Unknown,
and NYC DEPARTMENT OF CORRECTIONS
OFFICER “JOHN DOE”, Shield Number Unknown,
names being fictitious, but intended to be
NYC Department of Corrections Officers involved
in the subject incident whose names are
unknown to Plaintiff at this time,

Defendants.
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Plaintiff BRADLEY PULLMAN, by his attorneys, Law Offices of Andrew J. Spinnell, LLC, as and for Complaint against the Defendants, respectfully alleges upon information and belief as follows:

1. At all times hereinafter mentioned, Plaintiff BRADLEY PULMANN is a resident of the County of Kings and City and State of New York.
2. At the time of the instant occurrence, Plaintiff was a residence of the County, City, and State of New York.
3. At all times hereinafter mentioned, Defendant CITY OF NEW YORK (hereinafter “CITY”), was and still is a municipal corporation organized and existing under and

by virtue of the laws of the State of New York with its principal place of business located at City Hall and/or One Centre Street, New York, New York.

4. At all times hereinafter Defendant POLICE TAMARAH PINCKENY, Shield No.: 30612, (hereinafter "P.O. PINCKENY") was and still is a resident of the City of New York, and was and still is an employee of Defendant CITY assigned to the 10th Precinct of the New York City Police Department.

5. At all times hereinafter Defendant SERGEANT VINCENT FONTANA Shield Number Unknown, (hereinafter "SERGEANT FONTANA") was and still is a resident of the City of New York, and was and still is an employee of Defendant CITY assigned to the 10th Precinct of the New York City Police Department.

6. At all times hereinafter Defendant CORRECTIONS OFFICER "JANE" MONTAGUE, Shield Number unknown, (hereinafter "C.O. MONTAGUE") was and still is a resident of the City of New York, and was and still is an employee of Defendant CITY, employed at the Manhattan House of Detention located 125 White Street, New York, New York 10013.

7. At all times hereinafter Defendant CORRECTIONS OFFICER "JOHN DOE", Shield Number unknown, (hereinafter "C.O. JOHN DOE") was and still is a resident of the City of New York, and was and still is an employee of Defendant CITY, employed at the Manhattan House of Detention located 125 White Street, New York, New York 10013.

8. Each and all of the acts of said Defendant Police Officers and Defendant NYC Corrections Officers, alleged hereinbelow, were undertaken by said Defendants not as individuals, but under color and pretense of the statutes, ordinances, regulations, customs, and

usages of the State of New York, and under the authority of their Offices as employed Police Officers of the NYPD and/or employed Corrections Officers of the NYC Department of Corrections, and as employees of Defendant CITY.

9. On May 6, 2014, at approximately 11:20 p.m., the Plaintiff was inside the Chase Bank ATM located at 245 Seventh Avenue, New York, New York, withdrawing money from his personal bank account from the ATM when he was caused to become in fear of being imminently assaulted/robbed/mugged by a vagrant Male Latino, approximately 50 years of age, standing outside the ATM with his hands in his rear pants pockets and a knife clipped to his waist.

10. During this period of time in the aforesaid Chelsea neighborhood where Plaintiff then resided there were muggings taking place, which Plaintiff knew about.

11. While the Plaintiff was exiting the Chase Bank ATM, the Male Latino deliberately bumped into to Plaintiff in an hostile and aggressive manner, whereupon then Plaintiff moved aside and allowed the Mail Latino to enter the Chase Bank ATM, but said Male Latino withdrew no money from the ATM nor performed any other banking transaction, and exited the Bank with his hand on his knife. Plaintiff, who also had a hunting knife of his own in his pocket for protection, pulled out his knife and displayed it in front of the Male Latino, saying to him “[G]et the f... out of here”.

12. Plaintiff then walked to his apartment without further incident, arriving at his apartment building at approximately 11:30 p.m., on May 4, 2014, located at 202 West 24th Street, Apt. 607, New York, New York, when Defendant P.O. PINCKENY and SERGEANT FONTANA arrived shortly thereafter with the Male Latino who falsely informed the Police

Officers, in the lobby in front of the security guard at the lobby desk, that Plaintiff tried to attack him stating “that is the guy I had a problem with”.

13. Plaintiff, in response, informed P.O. PINCKENY that this Male Latino attempted to mug him outside the Chase Bank ATM; but, notwithstanding, P.O. PINCKENY arrested Plaintiff without reading him his Miranda Rights, and SERGEANT FONTANA placed Plaintiff in handcuffs and leg shackles tightly and transported him to the 10th Precinct of the NYPD for booking, where he was placed in a holding cell that contained black mold, which aggravated Plaintiff’s asthma condition.

14. While in the Custody of the NYPD, Plaintiff was caused to sustained unnecessary and severe bodily injuries due to the negligence of Defendant POLICE OFFICERS, including suffering an asthma attack, and severe cuts and bruises to his left and right wrists and ankles as a result of Defendant POLICE OFFICERS’ failure to properly secure and lock the ratcheting mechanism of the handcuffs and shackles to prevent same from overtightening, which caused them to dig into the Plaintiff’s wrists and ankles causing cuts, bruising, loss of circulation, and nerve damage.

15. P.O. PINCKENY inventoried Plaintiff’s possessions, including a gold chain, jacket, Metrocard, and money.

16. At the Precinct, Plaintiff suffered an asthma attack, so he was transported from the NYPD 10th Precinct to the emergency room of Beth Israel Medical Center located at First Avenue and 16th Street, New York, New York, where he remained for approximately two (2) hours handcuffed and shackled despite the treating medical provider advising Defendant POLICE OFFICERS that handcuffs and shackles were not needed in order for the Plaintiff to

receive medical treatment. During this time, the handcuffs and shackles caused blood to stop flowing and Plaintiff to experience excruciating pain for no reason.

17. Plaintiff was then released from Beth Israel Medical Center, and was taken to Central Booking by Defendant POLICE OFFICERS, where Plaintiff still had on the handcuffs and shackles notwithstanding his protests that they were extremely tight and reducing circulation through his upper and lower extremities and that the lack of circulation was causing him extreme pain; but SERGEANT FONTANA refused Plaintiff's request to remove and/or loosen the handcuffs and shackles and told Plaintiff "[Y]ou are going to learn a lesson".

18. On May 7, 2014, Defendant POLICE OFFICERS turned custody of Plaintiff over to the NYC Department of Correction Officers at Central Booking. At that time, the Plaintiff had improperly and negligently handcuffed and shackled for approximately 6-8 hours following his arrest on May 6, 2014, until a female Corrections Officer intervened at Plaintiff's request and released the handcuffs and shackles that had been placed on him by SERGEANT FONTANA.

19. Plaintiff was then placed in a holding cell at Central Booking with approximately 20 other male prisoners, all who were African American except him. While in the holding cell, Plaintiff was physically assaulted by a black male prisoner with dreadlocks and was caused to sustain injuries to his face, including a nose fracture and injuries to his dental implants. A NYC Correction Officer "JOHN DOE" made a mockery of Plaintiff's assault, and removed Plaintiff from the holding cell and threatened to place Plaintiff in another cell alone with the African American Male prisoner with dreadlocks to fight it out, while he and other Corrections Officers placed bets on the fight.

20. Plaintiff then requested that he be permitted to use the pay phone at Central Booking to contact the NYPD to report the assault. However, the Defendant CORRECTION OFFICERS initially prevented him using the payphone but also initially failed to properly document the Plaintiff's assault, but instead the CORRECTIONS OFFICERS either hit the Plaintiff with the pay phone receiver, or gave the receiver to the African American male prisoner to hit Plaintiff in the nose with it, which he did. Plaintiff was eventually permitted to file a Police Report regarding his assault and injuries he was caused to sustain, without any proper intervention and protection by Defendant CORRECTIONS OFFICERS.

21. On May 7, 2014, as a result of these injuries, Plaintiff was handcuffed again and transported to the emergency room at NYU Langone Medical Center by two NYPD Police Officers for treatment of the injuries he sustained when he was assaulted while in the custody of the NYC Department of Corrections. In the ER at NYU Langone, the Plaintiff was diagnosed as having sustained a fractured nose.

22. Plaintiff was eventually released from the NYU Langone Medical Center Emergency Room and transported again to Central Booking where he was not permitted to make a phone call to his family or to an attorney. Plaintiff was then arraigned in Criminal Court of the City of New York, New York County, and was ordered to be held on \$5,000.00 bond, when he was charged with PL 120.14, 265.01, 220.03, 110-110.15, 221.05, and AC 10-133(B). Without any financial help from family, Plaintiff could not pay the bond. Due to Plaintiff's inability to pay the bond, he was caused to spend the next 12 days in the Manhattan Detention Complex (a/k/a The Tombs).

23. During his stay at the Manhattan Detention Complex, Plaintiff was denied his basic civil rights by Defendant Correction Officer “JANE MONTAGUE” (hereinafter “C.O. MONTAGUE”) who refused him proper medical attention for his asthma, i.e. refusing to provide him with a nebulizer and an Albuterol inhaler. As a result, Plaintiff suffered an asthma attack and other bronchial issues and was caused wait to receive the nebulizer and other asthma treatments for approximately 2-3 days. During that time, Defendant C.O. MONTAGUE threatened Plaintiff and prevented him from going to the infirmary at the Tombs. Plaintiff’s breathing became laborious, causing him great pain, discomfort, and anxiety. Additionally, C.O. MONTAGUE subjected Plaintiff to racial and violent verbal threats saying, e.g. “I know your white ass is not sleeping in my infirmary”, and “I have a hit team, so be careful”.

24. Finally, after a few days where Plaintiff had to repeatedly bang on his cell for medical help, Plaintiff was taken to the infirmary at the Tombs for medical attention for his asthma. In fact, Plaintiff had to be taken to the infirmary several times during his stay in the Tombs for medical treatment for his asthma.

25. On or about May 19, 2014, Plaintiff was taken back to Criminal Court and his bail was reduced to \$2,500.00, whereupon some friends of his posted his bail permitting his release.

26. Plaintiff was returned to The Tombs to be released after posting bail. When Plaintiff was released from The Tombs, none of his personal property that he was arrested with, i.e. money, Metrocard, gold chain, and jacket, was returned to him.

27. Finally, after several court appearances in Criminal Court, on October 14, 2014, the Penal Law charges were dismissed, and Plaintiff pled guilty to AC 10-133(B), and to being sentenced to complete two (2) days of community service.

**AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF
OF BRADLEY PULLMAN FOR VIOLATION OF PLAINTIFF'S CIVIL
RIGHTS AGAINST DEFENDANT POLICE OFFICERS AND DEFENDANT CITY**

28. Plaintiff repeats, reiterates, and realleges each and every allegation contained in Paragraphs "1" through "27" hereof, with the same force and effect as if set forth fully at length herein.

29. On May 6, 2014 Plaintiff BRADLEY PULLMAN was arrested by the Defendant CITY and Defendant POLICE OFFICERS, and was taken into the custody of the NYPD. For approximately 6-8 hours, Plaintiff was improperly and negligently shackled and handcuffed, which caused him to suffer serious bodily injuries. Plaintiff was caused to wait an inordinate amount of time (approximately a few hours) before he received emergency medical treatment for an asthma attack at Beth Israel Medical Center for medical treatment. While Plaintiff was in the custody of the NYC Department of Corrections, Plaintiff suffered another asthma attack and other bronchial issues and was caused to wait to receive a nebulizer and other asthma treatments for approximately 2-3 days, during which time his breathing became laborious, causing him great pain, discomfort, and anxiety. C.O. MONTAGUE subjected Plaintiff to racial and violent verbal threats, i.e. "I know your white ass is not sleeping in my infirmary", and "I have a hit team, so be careful", and threatening Plaintiff and preventing him from receiving medical treatment for his asthma. When Plaintiff was finally released on bail from the custody of the NYC Department of Corrections, he was released without any of his personal property that he was arrested with, i.e. gold chain, jacket, money and Metrocard.

30. Defendants deliberately, willfully, and maliciously arrested Plaintiff BRADLEY PULLMAN without just cause or provocation and intentionally inflicted severe mental and emotional distress and severe permanent bodily injuries by reason of the excessively tight handcuffs and leg shackles, and by failing to prevent the fight or coming to his aid in the holding cell with another male prisoner, and aiding and abetting the assault by giving the prisoner a pay phone receiver to hit Plaintiff in the face and nose with without any justification, and without Plaintiff's consent, and thereby violated said Plaintiff's civil rights guaranteed by 42 U.S.C. Sec. 1983, and by the Fourth, Fifth, Sixth, Eighth and Fourteenth Amendments of the Constitution of the United States, and by the Constitution of the State of New York.

31. At all times hereinabove described, Plaintiff BRADLEY PULLMAN was negligently and improperly handcuffed and shackled by Defendant CITY and Defendant POLICE OFFICERS and held by force and against his will in said restrained state, notwithstanding Plaintiff's protests that the restraining devices where too tight and were causing him pain and bodily injuries; as Defendants deliberately, willfully and maliciously restrained Plaintiff without just cause or provocation and intentionally to inflict severe physical, mental, and emotional distress upon Plaintiff and thereby violated Plaintiff's civil rights guaranteed by 42 U.S.C. Sec. 1983, and by the Fourth, Fifth, Sixth, Eighth and Fourteenth Amendments of the Constitution of the United States, and by the Constitution of the State of New York.

32. At all times hereinafter mentioned, Defendant CORRECTIONS OFFICERS refused to provide Plaintiff promptly in response to his request for medical treatment while in their custody at the Tombs, thereby violating his civil rights guaranteed by 42 U.S.C. § 1983, and by the U.S. Constitution and the Constitution of the State of New York.

embarrassment, nightmares, and the inability to sleep which rendered his sick, sore, lame and disabled.

37. As a result of the foregoing, Plaintiff BRADLEY PULLMAN has been damaged in a sum that exceeds the jurisdiction of all lower courts.

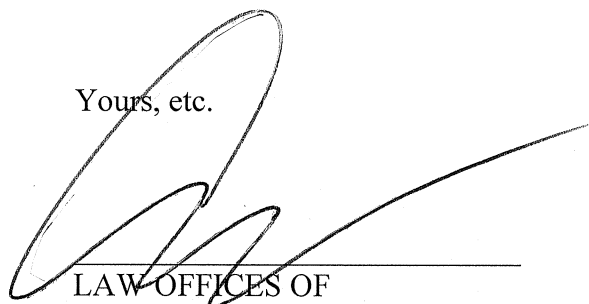
38. The aforesaid actions of Defendant CITY and Defendant POLICE OFFICERS and Defendant CORRECTIONS OFFICERS were so wanton and malicious and in violation of the public trust that an award of punitive damages should be assessed against the Defendants pursuant to 42 U.S.C. §1983 in a sum that exceeds the jurisdiction of all lower courts.

39. By reason of the foregoing, Plaintiff BRADLEY PULLMAN demands an award of attorney's fees in an amount to be determined at the time of trial pursuant to 42 U.S.C. §1988.

WHEREFORE, Plaintiff BRADLEY PULLMAN demands judgment against Defendants in a sum that exceeds the jurisdiction of all lower courts, with costs and disbursements, both jointly and severally, together with such other further relief as is just and proper.

Dated: New York, New York
July 10, 2017

Yours, etc.



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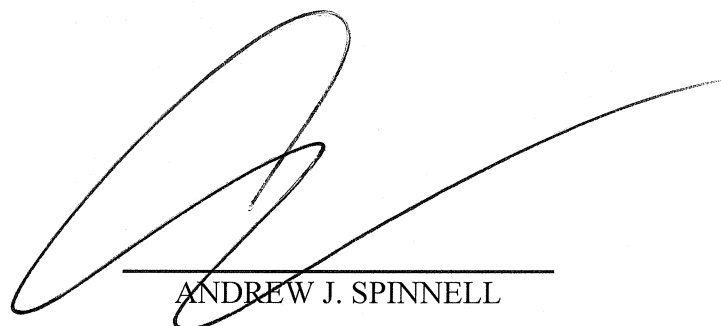
ATTORNEY VERIFICATION

STATE OF NEW YORK)
) s.s. :
COUNTY OF NEW YORK)

I, ANDREW J. SPINNELL, affirm as follows under penalty of perjury:

I, the undersigned, an attorney admitted to practice in the Courts of New York State, that I am the attorney of record for Plaintiff in the within action; I have read the foregoing **COMPLAINT**; the same is true of my own knowledge, except as to the matters therein alleged to be on information and belief, and as to those matters I believe it to be true. The reason this Verification is made by me and not by Plaintiff is on the ground that the Plaintiff is presently unavailable.

Dated: New York, New York
 July 10, 2017



ANDREW J. SPINNELL